



Stephen Cooke <stephencooke.c@gmail.com>

Cooke & Cooke - Family Law Matter

4 messages

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Fri, Aug 9, 2024 at 5:35 AM

To: "aroberts@delaneyroberts.com.au" <aroberts@delaneyroberts.com.au>

Cc: "oshedden@delaneyroberts.com.au" <oshedden@delaneyroberts.com.au>, Avalon Carnall <acarnall@ramsdenlaw.com.au>

Dear Colleagues

The sale of Merewether is due to settle soon. The following issues need to be clarified to allow the sale to proceed.

ATO Certificate

Kent Conveyancing has raised with Stephen that he needs to obtain an ATO clearance certificate. Stephen is an Australian citizen and Merewether is the primary residence. Heather's accountant prepared Stephen's tax. We presume they show Merewether, and thus Australia, as Stephen's place of residence for tax purposes. Stephen has made his own application for the certificate. Your client's accountants would be best positioned to give advice about the need for a clearance certificate and the quickest way to get one. Could your client ask the accountants to provide that advice? It is obviously in both our client's interests to avoid any withholding and for the sale to proceed as scheduled.

Discharge of mortgage

The April Orders provide that the three Merewether loans be paid on sale of Merewether. Those three loans are #7671, #7778 and #6802 secured by mortgage AN829304. Could you please confirm that these are the only loans that Heather has asked be discharged from

Merewether. Loan #2919 (secured by mortgage 711605737) will remain secured against Southport. We understand that the Southport loan is only secured against Southport and not also secured against Merewether. Please confirm this is correct.

Trust account

The Orders of 23 July 2024 provide that the net sale proceeds are to be paid to our trust account. We shall write separately to Kent Conveyancing with our trust account details and will include you in on the email.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



A SMARTER
PERSPECTIVE

T: 1300 749 709 | W: ramsdenfamilylaw.com.au

A: Level 3, 1 [Castlereagh Street](#), Sydney NSW 2000

Email Disclaimer & Anti-Fraud Information

Liability limited by a scheme approved under Professional Standards Legislation

BOOK A
MEDIATION WITH ME

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: Stephen Christopher Cooke <stephencooke.c@gmail.com>

Fri, Aug 9, 2024 at 5:43 AM

Dear Stephen

You could send this email to Kent to check re

1. Net proceeds to our trust account.
2. Loans to be paid on settlement.
3. Asking for Discharge authority signed by Heather.

Regards,

Matthew Shepherd
Acc. Spec. (Family Law) NSW

D: (02) 8123 1229
E: mshepherd@ramsdenlaw.com.au<mailto:>

[cid:image001.png@01DAEA50.3342A5A0]
[cid:image002.png@01DAEA50.3342A5A0]
T: 1300 749 709 | W: ramsdenfamilylaw.com.au
A: Level 3, 1 Castlereagh Street, Sydney NSW 2000
Email Disclaimer & Anti-Fraud Information<<https://ramsdenlaw.com.au/email-disclaimer/>>
Liability limited by a scheme approved under Professional Standards Legislation

[cid:image003.png@01DAEA50.3342A5A0]<<https://calendly.com/mshepherd-iby>>
From: Matthew Shepherd
Sent: Friday, August 9, 2024 11:35 AM
To: 'a roberts@delaneyroberts.com.au' <a roberts@delaneyroberts.com.au>
Cc: 'oshedden@delaneyroberts.com.au' <oshedden@delaneyroberts.com.au>; Avalon Carnall <ACarnall@ramsdenlaw.com.au>
Subject: Cooke & Cooke - Family Law Matter

Dear Colleagues

The sale of Merewether is due to settle soon. The following issues need to be clarified to allow the sale to proceed.

ATO Certificate

Kent Conveyancing has raised with Stephen that he needs to obtain an ATO clearance certificate. Stephen is an Australian citizen and Merewether is the primary residence. Heather's accountant prepared Stephen's tax. We presume they show Merewether, and thus Australia, as Stephen's place of residence for tax purposes. Stephen has made his own application for the certificate. Your client's accountants would be best positioned to give advice about the need for a clearance certificate and the quickest way to get one. Could your client ask the accountants to provide that advice? It is obviously in both our client's interests to avoid any withholding and for the sale to proceed as scheduled.

Discharge of mortgage

The April Orders provide that the three Merewether loans be paid on sale of Merewether. Those three loans are #7671, #7778 and #6802 secured by mortgage AN829304. Could you please confirm that these are the only loans that Heather has asked be discharged from Merewether. Loan #2919 (secured by mortgage 711605737) will remain secured against Southport. We understand that the Southport loan is only secured against Southport and not also secured against Merewether. Please confirm this is correct.

Trust account

The Orders of 23 July 2024 provide that the net sale proceeds are to be paid to our trust account. We shall write separately to Kent Conveyancing with our trust account details and will include you in on the email.

Regards,

Matthew Shepherd
Acc. Spec. (Family Law) NSW

D: (02) 8123 1229
E: mshepherd@ramsdenlaw.com.au<mailto:>

[cid:image001.png@01DAEA50.3342A5A0]
[cid:image002.png@01DAEA50.3342A5A0]
T: 1300 749 709 | W: ramsdenfamilylaw.com.au
A: Level 3, 1 Castlereagh Street, Sydney NSW 2000
Email Disclaimer & Anti-Fraud Information<<https://ramsdenlaw.com.au/email-disclaimer/>>
Liability limited by a scheme approved under Professional Standards Legislation

[cid:image003.png@01DAEA50.3342A5A0]<<https://calendly.com/mshepherd-iby>>

3 attachments



image001.png
30K



image002.png
14K



image003.png
6K

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>

Fri, Aug 16, 2024 at 10:50 AM

Dear Stephen

See email below from the other side.

The ATO certificate has been dealt with by you.

The email confirms which loans are secured against which property. The email says only the three Merewether loans are secured against Merewether. This can be double checked when Kent sends you the final settlement calculations.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



A SMARTER
PERSPECTIVE

T: 1300 749 709 | **W:** ramsdenfamilylaw.com.au

A: Level 3, 1 [Castlereagh Street](#), Sydney NSW 2000

Email Disclaimer & Anti-Fraud Information

Liability limited by a scheme approved under Professional Standards Legislation

BOOK A
MEDIATION WITH ME

From: Olivia Shedden <oshedden@delaneyroberts.com.au>

Sent: Friday, August 16, 2024 4:28 PM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>; Anna Roberts <aroberts@delaneyroberts.com.au>; Thiala Beltrao <tbeltrao@delaneyroberts.com.au>

Subject: RE: Cooke & Cooke - Family Law Matter

Dear Colleagues,

Thank you for your email below.

In relation to the ATO certificate, we are instructed our client completed a form sent to her by Kent Conveyancing and then she received her ATO certificate. Our client believes Stephen was also sent the form to complete and he should call the ATO to follow up on his certificate if not yet received. As far as our client is aware, your client is no longer a client of her accountant, Walshs.

We confirm the three (3) Merewether loans noted are the only loans secured against the Merewether property. The Southport loan is only secured against the Southport property.

We are finalising a draft joint letter to Kent Conveyancing regarding distribution of the sale proceeds and will forward same to you to consider and sign as soon as possible.

Yours faithfully

OLIVIA SHEDDEN

Solicitor

BBus, LLB (Hons), DipLegPrac



T 02 4952 3901

E oshedden@delaneyroberts.com.au

274 Brunker Road, Adamstown NSW 2289

PO Box 206, Adamstown NSW 2289

www.delaneyrobertsfamilylawyers.com.au

Liability Limited by a scheme approved under Professional Standards Legislation.

NOTICE: This communication may contain information that is confidential and subject to legal professional privilege and/or the Copyright of Roberts Legal Services Group Pty Limited. Confidentiality and privilege is not waived if you are not the intended recipient of this communication.

If you are not the intended recipient of this communication please delete and destroy all copies and e-mail aroberts@delaneyroberts.com.au immediately to advise us of the same. If you are the intended recipient of this communication you must not disclose, copy, distribute or modify this e-mail or any attachments without the authority of Roberts Legal Services Group Pty Limited. Except as required at law, Delaney Roberts Family Lawyers does not represent, warrant and/or guarantee that the integrity of this communication or its attachments has been maintained or that the communication is free of errors, virus, interception or interference. It is the responsibility of the recipient to virus check this e-mail and any attachments.

From: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Sent: Friday, August 9, 2024 11:35 AM

To: Anna Roberts <aroberts@delaneyroberts.com.au>

Cc: Olivia Shedden <oshedden@delaneyroberts.com.au>; Avalon Carnall <acarnall@ramsdenlaw.com.au>

Subject: Cooke & Cooke - Family Law Matter

Dear Colleagues

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>

Mon, Aug 19, 2024 at 6:07 AM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thank you, Matthew.

I've had very little sleep over the past week, averaging only about 3 hours a night, with last night being particularly rough. On Thursday, I didn't get to bed until 7am. As a result, I was only at Diamond IT on Monday last week and arrived late today at 11:00am. Fortunately, they seem very accommodating.

The new home I moved into had several issues that made it feel uninhabitable initially, including a strong unpleasant odor and various other problems. However, I've managed to address all of these concerns, including the odor, very quickly, and I'm pleased to say the boys had a wonderful time during their recent visit, with lots of fun and excitement by their accounts.

I was very busy as well, deep cleaning the new home while also deep cleaning the previous one, which required a lot of back and forth. There was also a misunderstanding with the movers—I was under the impression they would assist with packing smaller items, but they only handled the larger ones, so I had to take on that task solo as well.

I had to swing by the marital home with the boys yesterday to pressure wash the front and rear exterior and take out the bins in preparation for the settlement on August 23,

2024. Initially, I was concerned, but they didn't seem too bothered at all and even helped me pack some of the remaining items. Christian also asked that I keep some of Heather's Coles cooking magazines (I used to grab for her whenever I visited the shop). He said he wants something for both parents at each house.

My new residence is a blessing, especially now that I have sorted out the issues. The boys are sharing a room at this house, but there's also an additional playroom. It's a three-bedroom home, but one of the bedrooms is simply too small to be practical for that use, in my opinion. I have long discussed with Heather that I believe the boys should be sharing a room at their age anyway, and they are very accustomed to sleeping with their parents, which has been an ongoing struggle for them. From what I understand, while Heather is now enforcing that the boys remain in their separate rooms at her new home, they are experiencing issues, such as staying awake once they wake up. So, I think this shared arrangement could be a good stepping stone for them.

I called the bank this morning, and they reassured me that my delayed request to discharge the mortgage shouldn't be a cause for concern.

Could you please update me on where we stand at a high level? Are there any important court dates coming up? Anna was going to get back to us with a final proposal—has she? Also, where are we with the child lawyers? The boys tell me they haven't spoken with anyone yet.

I really appreciate all that you and your firm have done for me. Delaying the partial payment until settlement made a big difference in my and the boys' lives. Thank you.

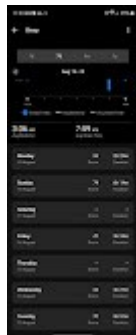
Warm regards,

Stephen

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]

3 attachments



Screenshot_20240819_113421_Connect.jpg
184K



20240815_172556.jpg
2607K



20240817_120030.jpg
2811K